

The Coal India (Regulation Of Transfers And Validation) Act, 2000

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The Coal India (Regulation Of Transfers And Validation) Act, 2000

UNION OF INDIA

India

The Coal India (Regulation Of Transfers And Validation) Act, 2000

Act 45 of 2000

Published on 8 December 2000

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The Coal India (Regulation Of Transfers And Validation) Act, 2000

ACT NO. 45 OF 2000

1172.

[8th December, 2000]

An Act to empower the Central Government to direct the transfer of the land, or of the rights in or over land or of the right, title and interest in relation to a coal mine, coking coal mine or coke oven plant, vested in the Coal India Limited or in a subsidiary company to any subsidiary company of Coal India Limited or any other subsidiary company and to validate certain transfers of such land or rights.

BE it enacted by Parliament in the Fifty-first Year of the Republic of India as follows:-

1.

Short title.

-This Act may be called the Coal India (Regulation of Transfers and Validation) Act, 2000.

2.

Definitions.

-In this Act, unless the context otherwise requires,-

(a)

"Coal India" means the Coal India Limited, a Government company incorporated under the Companies Act, 1956 (1 of 1956

) having its registered office at Calcutta and includes its predecessor Government company, namely, the Coal Mines Authority Limited;

(b)

"subsidiary company" means the following subsidiary companies of Coal India, namely:-

(i)

the Central Coal Fields Limited, Ranchi and includes its predecessor Government company, namely, the National Coal Development Corporation Limited, Ranchi;

(ii)

the Bharat Coking Coal Limited, Dhanbad;

(iii)

the Western Coal Fields Limited, Nagpur;

(iv)

the Eastern Coal Fields Limited, Sanctoria;

(v)

the Central Mine Planning and Design Institute Limited, Ranchi;

(vi)

the South-Eastern Coal Fields Limited, Bilaspur;

(vii)

the Northern Coal Fields Limited, Singrauli;

(viii)

the Mahanadi Coal Fields Limited, Sambalpur. and includes such other subsidiary company of Coal India as may be incorporated under the Companies Act, 1956 (1 of 1956

) from time to time;

(c)

words and expressions used herein and not defined but defined in the Coking Coal Mines (Nationalisation) Act, 1972 (36 of 1972) or the Coal Mines (Nationalisation) Act, 1973 (26 of 1973), shall have the meanings, respectively, assigned to them in the Acts.

3.

Power of Central Government to direct transfer of land, rights, title or interest.

(1)

Notwithstanding anything contained in any other law for the time being in force, the Central Government may, if is satisfied that a subsidiary company is willing to comply, or has complied, with such terms and conditions as that Government may think fit to impose, direct, by notification in the Official Gazette, that the land or rights in or over such land or the right, title and interest in relation to a coal mine, coking coal mine or a coke oven plant vested in the Coal India shall, instead of continuing to vest in the Coal India, vest in that subsidiary company or, where such land or right, title or interest vests in a subsidiary company, in another subsidiary company.

(2)

Where the land or rights in or over such land or the right, title and interest in relation to a coal mine, coking coal mine or a coke oven plant vest in a subsidiary company under sub-section (1), such subsidiary company shall, on and from the date of such vesting, be deemed to have become the lessee in relation to such coal mine or coking coal mine as in a fresh mining lease in relation to such coal mine or coking coal mine had been granted to it under Mineral Concession Rules, 1960 made under section 13 of the Mines and Minerals (Development and Regulation) Act, 1957 for the maximum period for which such lease could have been granted under those rules, and all the rights and liabilities of

Coal India or, as the case may be, the subsidiary company in relation to such coal mine or coking coal mine shall, on and from the date of such vesting, be deemed to have become the rights and liabilities, respectively, of subsidiary company first-mentioned.

4.

Validation of certain transfers.

-A subsidiary company which was operating, or was in control of, any coal mine, coking coal mine, or coke oven plant which was vested in the Coal India or any other subsidiary company immediately before the commencement of this Act, shall be deemed to have been vested with the land or rights in or over such land or the right, title and interest in relation to such coal mine, coking coal mine or coke oven plant and such vesting shall be deemed to have been valid and effective at all material times as if a direction had been made by the Central Government under sub-section (1) of section 3 and accordingly no suit or other proceeding shall be instituted, maintained or continued in any court on the ground that such subsidiary company was not competent to operate or control such coal mine, coking coal mine or coke oven plant.

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